

## Chapter 14: Additional Safety Tips

### Defensive Driving

To avoid crashes, the defensive driver should:

1. Stay alert and keep eyes moving to keep track of what is happening at all times
2. Look for trouble spots developing all around
3. Have a plan of action
4. Know that the law requires drivers to protect each other from their own mistakes

### Safety Belts

The driver and all passengers, regardless of age, in a passenger vehicle are required to use safety belts if occupying a seat in a vehicle equipped with a safety belt. Any child under 8 years old must be secured in a federally approved child car seat if occupying a seat in a vehicle equipped with a safety belt, unless the child is more than 4'9" tall.

Safety belt requirements include pickups, SUVs, and trucks. Safety belts help keep you:

1. From being thrown from your car. Your chances of being killed are five times greater if you are thrown from your car
2. From hitting the dashboard too hard
3. In better control of your car

Whatever your reason for not wearing safety belts, it is dangerous and violates state law.



### Penalties for Driving Without a Safety Belt

A driver can receive a citation for not wearing his/her safety belt and for not having each child under the age of 17 in a safety seat or safety belt. Anyone who is at least 15 years of age can receive a citation for not wearing a safety belt. There are no exemptions to the safety belt laws. However, there are some defenses to prosecution for postal workers, individuals who deliver the newspaper, utility workers, solid waste truck workers, certain commercial farm vehicle operators, or medical reasons with a physician's note.

**Table 37: Penalties for Not Wearing a Required Safety Belt**

| Conviction                                                                                                                     | Penalty*                 |
|--------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| Driving a vehicle without a safety belt                                                                                        | A fine of \$25 to \$50   |
| Passengers under 8 years old and less than 4'9" tall riding while not properly secured in a child passenger safety seat system | A fine of \$25 to \$250  |
| Passengers at least 15 years old riding without a safety belt                                                                  | A fine of \$25 to \$50   |
| Passengers under 17 years old riding without a safety belt (fine assessed to driver)                                           | A fine of \$100 to \$200 |
| Children under 18 years old riding in an open-bed pickup or open flatbed truck (fine assessed to driver)                       | A fine of \$25 to \$200  |

\*Additional suspensions may apply.

### Vehicles with Open Beds

It is an offense to drive an open bed truck, an open flatbed truck, or to draw an open flatbed trailer when a child who is younger than 18 years of age is occupying the bed of the truck or trailer.

It is a defense to prosecution that the driver was operating or towing the vehicle:

1. In a parade or in an emergency
2. To transport farm-workers from one field to another field on a farm-to-market road, ranch-to-market road, or county road outside a municipality
3. On a beach
4. That is the only vehicle owned or operated by members of a household, or
5. In a hayride permitted by the governing body of or a law enforcement agency of each county or municipality in which the hayride will occur